

- (b) a notice of the opening of the lines of rails and works or the diversion shall be sent immediately to the Commissioner.

Comment

Section 24 provides that where an accident has occurred on a railway resulting in a temporary suspension of traffic may be opened for the public carriage of passengers without prior inspection by the Commissioner if the railway servant in charge of the works undertaken by reason of the accident certifies that opening of the lines or rails, works and temporary diversion will not be attended with danger to the public and notice of the opening of such lines of rails, works or other diversion is sent by telegraph to the Commissioner.

25. Power to close railway opened for the public carriage of passengers

:- Where after the inspection of any railway opened and used for the public carriage of passengers or any rolling stock used thereon, the Commissioner is of the opinion that the use of the railway or of any rolling stock will be attended with danger to the public using it, the Commissioner shall send a report to the Central Government who may thereupon direct that –

- i) the railway be closed for the public carriage of passengers; or
- ii) the use of the rolling stock be discontinued or
- ii) the railway or the rolling stock may be used for the public carriage of passengers subjects to such conditions as it may consider necessary for the safety of public.

Comment

Section 25 empowers the Central Government to close railway opened for the public carriage of passengers on receipt of the opinion of the Commissioner.

26. Re-opening of closed railway. :- When the Central Government has, under sec. 25 directed the closure of a railway or the discontinuance of the use of any rolling stock-

- (a) the railway shall not be re-opened for the public carriage of passengers until it has been inspected by the Commissioner and its re-opening is sanctioned in accordance with the provisions of this Chapter ; and